

REPORT

on the risks of a decline in the export volume of remote US logistics services from Uzbekistan

US road logistics almost entirely passed to the private sector 40 years ago. In the early 2000s the internet covered the whole world. Software improved and accelerated processes across all industries of the economy. «Smart» electronic devices were introduced into transport and infrastructure. Interstate routes in the US were expanded and suburbs developed. Online commerce began to grow, and demand for frequent consumer deliveries increased.

These factors greatly expanded the US road freight market. Recently 72.7 % of all deliveries within the US falls specifically on road transport. The number of carrier companies reached 580 thousand, while total employment amounted to 8.4 million people, of which more than 3.5 million are drivers. Almost 15 million trucks are registered. The industry's total turnover exceeded \$ 1 trillion in 2023, then fell to \$ 906 billion in 2024.

US road logistics market indicators¹

Category	Indicator	Period
Share of all shipments	72.7%	2024
Total turnover	\$ 906 billion	2024
Registered tractor units	14.9 million	2024
Number of active carrier companies	580 thousand	2025
Share of companies with fewer than 10 tractor units	91.5%	2025
Number of drivers	3.58 million	2024
Total employment (<i>incl. related services, excluding the self-employed</i>)	8.4 million	2024
Market size BPO	\$ 128.3 billion	2025

¹ [Economics and Industry Data | American Trucking Associations](#)

1. History of US road freight transport

Until the mid-1930s, US freight transport existed with virtually no federal oversight. The only regulator in the transport sphere was the *Interstate Commerce Commission (ICC)*, created back in 1887 to oversee railroads². The road freight industry grew spontaneously; freight tariffs and routes were controlled by no one, and the accident rate remained extremely high.

The turning point was the *Motor Carrier Act* of 1935. Under pressure from the railroad lobby, which feared competition from trucks, it extended ICC jurisdiction to road freight transport. New market entrants were now required to obtain a «*certificate of public necessity and convenience*», and freight tariffs were subject to mandatory public registration with the ICC 30 days before taking effect³.

In 1936 the first federal safety rules of the *Bureau of Motor Carriers* were issued, and in 1938 – the first limits on drivers' working hours⁴. The *Reed-Bulwinkle Act* of 1948 granted carriers the right to collectively set tariffs in «*rate bureaus*», exempting them from antitrust law despite *President Truman's* veto⁵. The system lasted 45 years, turning the ICC into one of Washington's most influential regulatory bodies.

The restricted-market policy met growing criticism by the late 1970s: tariffs were inflated, routes were restricted, competition was suppressed. On 1 July 1980, *President Jimmy Carter* signed a new *Motor Carrier Act (Motor Carrier Act of 1980)*, which eliminated most barriers to market entry and freed pricing⁶. By 1990 the number of licensed carriers significantly exceeded 40 thousand, which is twice as many as in 1980⁷. By 1985 shippers were saving about \$ 7.8 billion annually thanks to lower tariffs, and by 1998 carriers' operating costs had fallen by 75%⁸. Deregulation turned the industry into a competitive private market, but gave rise to thousands of small carriers with minimal administrative resources.

² [congress.gov](https://www.congress.gov), [econlib.org](https://www.econlib.org)

³ [congress.gov](https://www.congress.gov)

⁴ [224-120 final Pdf.pdf](#), [Federal Motor Carrier Act of 1935](#)

⁵ [Trucking Deregulation in the United States Submission by the United States to the Ibero- American Competition Forum \(September, 2007\)](#)

⁶ [The Motor Carrier Act of 1980: An Analysis of the Changes](#)

⁷ [Trucking Deregulation - Econlib](#)

⁸ [Forty Years After Surface Freight Deregulation | The Regulatory Review](#)

In parallel with the deregulation of economic activity, the federal government tightened safety requirements. The Surface Transportation Assistance Act of 1982 established the MCSAP program – federal grants to states to ensure compliance with safety standards – and created a national network of truck routes⁹.

In 1986 the Commercial Motor Vehicle Safety Act introduced a single national commercial driver's license (CDL)¹⁰.

In 1995 the ICC was terminated by the ICC Termination Act, and its functions were divided between the Surface Transportation Board¹¹ (STB, the economic regulator) and the Federal Highway Administration (FHWA, the safety regulator)¹². On 1 January 2000, in accordance with the 1999 Motor Carrier Safety Improvement Act, the Federal Motor Carrier Safety Administration (FMCSA) was created – now the industry's main federal regulator¹³.

Since the 2000s, FMCSA has consistently introduced new oversight tools: the CSA program (*Compliance, Safety, Accountability*) was launched in 2010; the FMCSA information system for recording violations of drug and alcohol use requirements (*Drug & Alcohol Clearinghouse*) – in January 2020; mandatory electronic working-time recorders (*Electronic Logging Device, ELD*) – in December 2017 in accordance with 49 CFR Part 395¹⁴. It was precisely the introduction of mandatory ELD use that laid the basis for moving the industry's internal work processes into digital format, since driver data is now available over the internet in real time.

The mass international transfer of business processes to an external contractor (*outsource, BPO – business process outsourcing*) became possible in the 1990s, when economic liberalization in India and the Philippines opened access to an English-speaking skilled workforce at prices fundamentally lower than American ones. The «Y2K crisis» in the late 1990s accelerated this process – the need for scalable teams on short notice proved the viability of the offshore model¹⁵. According to a University of California study, by 2003 India already

⁹ [Palace Coup: President Ronald Reagan and the Surface Transportation Assistance Act of 1982 - Federal Aid Legislation - Highway History - Federal Highway Administration](#)

¹⁰ [tile.loc.gov](#)

¹¹ [The Surface Transportation Board \(STB\): Background and Current Issues | Congress.gov | Library of Congress](#)

¹² [S. Rept. 104-176 - INTERSTATE COMMERCE COMMISSION SUNSET ACT OF 1995 | Congress.gov | Library of Congress](#)

¹³ [About Us | FMCSA](#)

¹⁴ [2015-31336.pdf](#)

¹⁵ [Offshore Outsourcing to India by U.S. and E.U. Companies | UC Davis Business Law Journal](#)

controlled about 44% of the global BPO market for software and office functions¹⁶.

***For reference:** «The Y2K crisis» is a problem of old computer systems in which the year was often indicated by the last two digits. When transitioning to 2000 there was a risk of misreading the date «00», which could have caused failures in critically important information systems. Thanks to large-scale software modernization, serious consequences were avoided. The crisis became one of the factors driving demand for external IT competencies and the development of digital-services BPO.*

For the US trucking industry, the BPO sector emerged as a direct consequence of the 1980 deregulation. The fragmentation of the market created a mass of small carriers (91.5 % of operators each manage fewer than 10 trucks¹⁷), which lack the resources to maintain their own administrative staff. The first companies specializing in the BPO of logistics processes appeared in the US in the 1990s. In particular, DATAMARK reports more than 30 years of experience working with transport companies on processing freight bills¹⁸. The technological impetus was the widespread spread of the internet and VoIP in the 2000s, which made remote dispatch services practically indistinguishable from local ones.

Today the Philippines holds a dominant position in the BPO of logistics operations for the US. According to the IT & Business Process Association of the Philippines (IBPAP), in 2024 the country's BPO sector employed 1.82 million people generating \$38 billion in export revenue, a significant part of which comes from transport support¹⁹.

India specializes in high-volume process tasks – processing freight invoices and robotic automation. Colombia and Belize are actively developing the dispatch-services niche thanks to their time-zone overlap with US Eastern and Central Time. Foreign teams cost 50–70 % less than American ones with comparable quality in established processes²⁰.

2. The chain of road freight transportation in the current US logistics industry.

¹⁶ [Offshore Outsourcing to India by U.S. and E.U. Companies | UC Davis Business Law Journal](#)

¹⁷ [Economics and Industry Data | American Trucking Associations](#)

¹⁸ [Company | About Us | DATAMARK, Inc.](#)

¹⁹ [The Continued Growth of BPO in the Philippines - 365Outsource.com](#)

²⁰ [Top 5 Offshoring Destinations for US Freight and Logistics](#)

A single domestic **full-truckload shipment** (*full truckload, FTL*) usually passes through several links from the shipper to the final recipient.

The shipper (*also called the beneficial cargo owner, consignor, or, when a third party pays for transport on the owner's behalf, the commercial shipper*²¹) owns the goods and offers the cargo for transport. The cargo is stored, assembled and prepared at a **warehouse** or **distribution center**.

To find a truck, the shipper usually turns to an intermediary – a **freight broker**, who is defined by law as a person who, for compensation, arranges the transport of property by an authorized motor carrier^{22 23}, or to a **third-party logistics provider (3PL)**, which performs the same function of arranging transport (*and therefore, under the law, falls within the definition of a broker when it does so*).

The intermediary hands the cargo to the **motor carrier** – a person that carries out road transport for compensation²⁴, – whose dispatch function assigns it to a **driver**, who transports the cargo and signs the documents. The cargo is handed to the **consignee** or the **end customer**, who confirms delivery with a special proof-of-delivery document – **POD** (*Proof of Delivery*).

When smaller shipments are combined in a single transit, a **freight forwarder** may appear in the chain. It collects and consolidates shipments, assumes carrier liability, and issues its own bill of lading **BOL** (*Bill of Lading*). In this case the forwarder legally acts simultaneously as the receiving and delivering carrier and bears carrier liability under the Carmack Amendment (*Carmack Amendment*)^{25 26}. For import cargo, a **customs broker** is added, licensed by **the U.S. Customs and Border Protection (CBP)** for customs control of cargo through **CBP**^{27 28}.

In parallel with the physical movement, there is an **internal operational layer** of business-process functions (*back office*) that affects every link. This includes booking cargo and confirming rates, dispatch and after-hours service, carrier onboarding/verification support, cargo tracking (*«check calls»*), document management (*processing bills of lading and PODs*), as well as

²¹ <https://www.law.cornell.edu/cfr/text/49/375.103>

²² <https://www.law.cornell.edu/uscode/text/49/13102>

²³ <https://www.law.cornell.edu/cfr/text/49/371.2>

²⁴ <https://www.law.cornell.edu/uscode/text/49/13102>

²⁵ [law.cornell.edu](https://www.law.cornell.edu)

²⁶ [law.cornell.edu](https://www.law.cornell.edu)

²⁷ [law.cornell.edu](https://www.law.cornell.edu)

²⁸ cbp.gov

calculating and processing payments, invoicing, auditing freight bills, accounting, and settlements.

These functions are designated here as «BPO», and most of them are performed remotely^{29 30 31}. The **early payment for completed shipments through factoring companies** (*freight factoring*) service allows a carrier to sell its unpaid invoices in exchange for an advance (*within 24 hours*), to cover a **30 – 90** day payment delay.³²

The chain of continental road freight transport in the US

Participant	Role	Place in the chain	Location
Shipper (BCO)	Owns the cargo and offers it for transport; listed as shipper or consignee on the bill of lading ³³ .	Start of the chain	Domestic
Warehouse operator	Receives, stores, assembles, prepares and loads the cargo; manages inventory.	Between the shipper and transport	Domestic (<i>physically</i>)
3PL (third-party logistics)	Arranges and manages logistics services for shippers; when arranging transport for compensation, acts within the definition of a broker.	Intermediary	Head office domestic; back office often abroad
Freight broker	For compensation, arranges transport by an authorized motor carrier; registered with FMCSA and backed by a surety bond (\$75,000) ^{34 35 36} .	Intermediary (<i>between shipper and carrier</i>)	Domestic, abroad (<i>regulated</i>)
Freight forwarder	Collects and consolidates shipments, assumes carrier liability, issues its own bill of lading; carrier liability applies ^{37 38} .	Intermediary / consolidator	Domestic (<i>regulated</i>)
Motor carrier with its own fleet	Carries out road transport for compensation; operates trucks and hires drivers on an employment/contract basis ³⁹ .	Line-haul transport	Domestic (<i>regulated</i>)
Owner-operator	An independent long-haul trucker who owns the vehicle and either holds their own authority or works under lease to a carrier ⁴⁰ .	Line-haul transport	Domestic
Dispatch service	Books cargo and coordinates work on the carrier's behalf; lawful as a bona fide agent of the carrier, but acts as a broker (<i>and must register</i>) if it arranges transport for several carriers ^{41 42} .	Back office around the carrier	Often abroad

²⁹ freightwaves.com

³⁰ trans.uz

³¹ superstaff.com

³² geotab.com

³³ law.cornell.edu

³⁴ law.cornell.edu

³⁵ law.cornell.edu

³⁶ prepass.com

³⁷ law.cornell.edu

³⁸ law.cornell.edu

³⁹ law.cornell.edu

⁴⁰ ooida.com

⁴¹ federalregister.gov

⁴² law.cornell.edu

Participant	Role	Place in the chain	Location
Freight exchange	An electronic platform that matches available loads and trucks for a fee ⁴³ .	Platform at the cargo-handover stage	Platform domestic
Factoring company	Buys a carrier's unpaid invoices at a discount and advances funds (<i>often within 24 hours</i>) ⁴⁴ .	Payment for transport	Domestic
Customs broker	Licensed by CBP to conduct customs activities and clear import cargo ⁴⁵ ⁴⁶ .	Import stage	Domestic (<i>licensed</i>)
«Last-mile» carrier	Serves the last leg to the consignee/end customer, often for parcels and oversized goods.	End of the chain	Domestic (<i>physically</i>)
Cargo insurer	Provides cargo and liability insurance; carriers/brokers must meet minimum financial-responsibility levels ⁴⁷ .	Risk-management layer (<i>all links</i>)	Domestic (<i>regulated</i>)
Carrier-vetting / fraud-prevention service provider	Vets carriers against FMCSA data (<i>e.g., SAFER</i>) and its own signals before handing over the cargo ⁴⁸ .	Onboarding / cargo handover	Tools domestic
Offshore back-office BPO provider	Remotely performs dispatch, tracking, document management, billing, accounting and support for US carriers/brokers ⁴⁹ ⁵⁰ .	Covers the entire chain	Offshore

3. The legal framework of the US road logistics sector

The legal framework of US road logistics rests on several successive legal layers of regulation. Each subsequent layer fully replaces or reworks the previous one.

Before 1935, interstate continental road freight transport was not established in legislation. In 1935 Congress passed the Motor Carrier Act. Through this law a system was established in which the Interstate Commerce Commission (ICC) restricted new entrants to the industry, approved certain routes, and required freight-rate schedules and their terms of application to be officially registered with the regulator 30 days before they took effect⁵¹.

Following this, in 1948 the Reed–Bullwinkle Act was passed because of antitrust suits over collective price-setting. The law allowed rate bureaus operating in agreement with the ICC to set transport tariffs. As a result,

⁴³ ccjdigital.com

⁴⁴ geotab.com

⁴⁵ law.cornell.edu

⁴⁶ cbp.gov

⁴⁷ law.cornell.edu

⁴⁸ safer.fmcsa.dot.gov

⁴⁹ freightwaves.com

⁵⁰ trans.uz

⁵¹ [Trucking Deregulation in the United States Submission by the United States to the Ibero- American Competition Forum \(September, 2007\)](#)

virtually all carriers were assigned to such rate bureaus, and customers paid exclusively the inflated prices set by the rate bureau⁵².

The turning point for the industry was the 1980 Motor Carrier Act, which deregulated the industry toward free-market conditions. This helped avoid the monopolistic nature of price-fixing. The effect of this law proved significant, was confirmed by independent studies, and was reflected in a report by the FTC (*Federal Trade Commission*).

Thus, the average tariff for transporting standard-volume TL (*truckload*) cargo fell by 25% over 1977–1982. The average tariff for below-standard-volume LTL (*less than truckload*) cargo fell by 12% over the same period despite a doubling of fuel prices.

The number of small TL carriers grew from 20 thousand in 1980 to 55 thousand by 1995. The net benefit of deregulation was estimated at more than \$ 18 billion in 1996 terms. Industry employment grew by almost 30 % in the seven years from 1980. Operating costs per mile of TL transport fell by at least 75 %⁵³.

This period marked the direct start of US freight-logistics BPO as a new market category. The broker role emerged, which today makes up the largest part of all industry sectors available for outsourcing.

In 1995 the ICC Termination Act was passed (*ICC Termination Act of 1995, H.R.2539*). The ICC's powers were transferred to the Surface Transportation Board (*STB*). The STB became a structural division of the Department of Transportation (*DOT*). The law clarified the term «carrier», extending it to the motor carrier, water carrier, and freight forwarder, and gave the Secretary of Transportation and the Board jurisdiction over these entities.⁵⁴

This law laid the basis for the current system of registering brokers, carriers, and forwarders, codified in Title 49 of the United States Code (*49 U.S.C. § 13901*)⁵⁵. Subsection (a) of §13901 states directly: a person may carry out

⁵² [Trucking Deregulation in the United States Submission by the United States to the Ibero- American Competition Forum \(September, 2007\)](#)

⁵³ [Trucking Deregulation in the United States Submission by the United States to the Ibero- American Competition Forum \(September, 2007\)](#)

⁵⁴ [Statement on Signing the ICC Termination Act of 1995 | The American Presidency Project](#)

⁵⁵ [49 U.S. Code § 13901 - Requirements for registration | U.S. Code | US Law | LII / Legal Information Institute](#)

transport as a motor carrier... or provide services as a freight forwarder... or as a broker in transport... only if that person is registered under this chapter.

The Moving Ahead for Progress in the 21st Century Act (*MAP-21*) in 2012⁵⁶ amended §13901, generally overhauling the registration-number system⁵⁷, establishing a requirement to assign a distinctive registration number indicating the type of transport or service – the legislative predecessor of current efforts to consolidate *USDOT* numbers under the *Motus* system.

4. Key Regulatory Authorities

The current regulatory framework is divided into **economic and registration oversight** and **safety oversight**, with this separation of authorities established directly by the **1995 legislation**.

The U.S. Congress is the supreme legislative body responsible for shaping federal legislation governing the motor carrier and trucking logistics industry. Congress enacts laws that define the operating rules of the transportation market, determines the powers of federal agencies, and exercises parliamentary oversight over their activities. In recent years, Congress has been considering a number of bills addressing illegal brokerage, cargo theft, foreign dispatching services, and Electronic Logging Devices (ELDs). These legislative initiatives may also have a direct impact on foreign companies operating within the U.S. trucking logistics chain.

The Department of Transportation (DOT) is the federal executive agency responsible for developing the U.S. transportation system and implementing national transportation policy. The *Federal Motor Carrier Safety Administration (FMCSA)*, the *Federal Highway Administration (FHWA)*, and other transportation agencies operate within the DOT. The Department coordinates the development of transportation infrastructure, implements federal programs, and facilitates cooperation between the public and private sectors. In addition, through the *Freight Logistics Optimization Works (FLOW)* platform, the DOT supports more efficient freight movement by enhancing information sharing across the transportation and logistics supply chain.

The Federal Motor Carrier Safety Administration (FMCSA) is the principal regulatory authority overseeing the day-to-day activities of every

⁵⁶ [PUBL141.PS](#)

⁵⁷ [49 U.S. Code § 13901 - Requirements for registration | U.S. Code | US Law | LII / Legal Information Institute](#)

participant in the U.S. trucking logistics chain. Its jurisdiction covers motor carriers, brokers, freight forwarders, and increasingly foreign dispatch service providers. Its primary mission is to prevent crashes, fatalities, and injuries involving commercial motor vehicles and buses.

FMCSA develops safety standards and regulatory requirements for commercial driver's licenses (*CDLs*), analyzes industry data, finances research, and carries out compliance oversight and outreach activities. The agency administers registration procedures (*through the new Motus system*), *CDL* standards, drivers' Hours of Service (*HOS*) requirements, regulations governing *Electronic Logging Devices (ELDs)*, and financial responsibility requirements applicable to freight brokers.

The Department of Justice (DOJ) performs a unique institutional role. Although it is not the direct regulator of the trucking industry, following a 2019 court decision unfavorable to **FMCSA**, it became the only federal authority empowered to impose civil penalties for violations of **FMCSA** commercial regulations. This development has effectively made the **DOJ** a co-regulator in enforcing laws against illegal brokerage activities and fraud within the trucking industry. It is expected that this role will be formally codified through future legislation.

The Office of Inspector General (OIG) of the Department of Transportation conducts criminal investigations independently from the **DOJ's** civil enforcement authority. According to **FMCSA's** report submitted to Congress in July 2024, the **OIG** referred numerous cases involving victims of fraud in the household goods moving industry to the **DOJ** for further investigation and potential prosecution. The **OIG** has also participated alongside the **DOJ** in prosecuting corporate officials, resulting in criminal convictions and terms of imprisonment.

The Federal Trade Commission (FTC) is the federal agency responsible for ensuring fair competition and protecting consumers in the trucking logistics market. It investigates deceptive business practices, unfair competition, false advertising, and fraud, and may impose civil enforcement measures. Within the logistics sector, the **FTC** primarily oversees household goods moving companies, logistics intermediaries, and businesses providing services directly to consumers.

The Federal Bureau of Investigation (FBI) is the principal federal law enforcement agency responsible for investigating serious federal crimes related to the trucking logistics industry. Its jurisdiction includes cargo theft, organized crime, financial fraud, cybercrime, **Business Email Compromise (BEC)**, identity fraud, and other criminal schemes targeting the logistics supply chain. In such investigations, the **FBI** works closely with the **DOJ**, the **Department of Homeland Security (DHS)**, and other federal agencies.

The Department of Homeland Security (DHS) is the federal agency responsible for safeguarding the homeland and plays a critical role in securing the transportation and supply chain. Its component agencies—including **U.S. Customs and Border Protection (CBP)**, **Homeland Security Investigations (HSI)**, and the **Cybersecurity and Infrastructure Security Agency (CISA)** – monitor cross-border cargo movements, combat smuggling and transnational crime, and protect logistics infrastructure from cyber threats. In recent years, legislative proposals under consideration in **Congress** have also sought to further strengthen **DHS** authorities in combating cargo theft and protecting the supply chain.

5. Current changes in US legislation

According to the report submitted by **FMCSA** to **Congress** in July 2024, it is explicitly indicated that the starting point of this situation was the events of 2019: in the case of “*Darlene Riojas et al.*” (*No. FMCSA-2012-0174*), a **Department of Transportation Administrative Law Judge** issued a decision determining that **FMCSA** did not have the legal authority to adjudicate violations under **Subtitle B of Title IV of Title 49 of the U.S. Code** through administrative proceedings or to impose civil penalties, including in matters related to broker regulations. According to the decision, **FMCSA** was required to refer such cases for consideration by a federal district court rather than pursue them through an administrative process.

FMCSA explains this legislative gap by noting that the requirement to refer cases to the **DOJ** for the imposition of civil penalties related to commercial violations, including cases of unlawful brokerage activities, creates a significant obstacle in the enforcement process. Unless the regulated entity voluntarily corrects the violation, **FMCSA** is required to transfer the case to the **DOJ** for further legal action.

Prior to the issuance of the decision in the [Riojas](#) case, [FMCSA](#) had issued approximately 20 notices of claims for unlawful brokerage activities under 49 U.S.C. § 14916 between 2014 and 2019. Following the [Riojas](#) decision, however, the agency was left with only notices of violation without penalties and letters concerning alleged violations. The latter type of letters proposes the imposition of civil penalties; however, if the broker does not voluntarily resolve the matter, further enforcement action requires the involvement of the [DOJ](#).

The agency's own conclusion, quoted verbatim from the report, is as follows: *"The Agency believes it is necessary and appropriate to revise its statutory authorities to provide FMCSA with explicit legal authority to administratively impose civil penalties for unlawful brokerage activities."*⁵⁸.

This report is one of the key documents for understanding the reasons behind the emergence of the legislation discussed below. It represents [Congress's](#) response to [FMCSA's](#) formal request to expand its regulatory authority, as the agency's existing enforcement powers were deemed insufficient.

[FMCSA's](#) [Motus](#) registration system (*Motus: USDOT Registration System*⁵⁹) has advanced beyond its phased rollout. Motus is now open to **all** entities that require a [USDOT](#) number or operating authority, including motor carriers, brokers, forwarders, intermodal equipment operators (*companies providing container chassis and other equipment for combined transport*) and tank-transport facilities, as well as auxiliary companies such as [BOC-3](#) filers and insurance/surety companies. [FMCSA](#) describes this as an important step forward in its efforts to strengthen oversight, reduce fraud, and improve efficiency. Identity verification via [Login.gov](#) is now a mandatory first step for any registrant.

For external [BPO](#) companies, this means that any foreign dispatch entity that ultimately falls under the requirement for broker registration will register precisely through this system and will fall under the same identity-verification infrastructure that applies today to domestic entities.

From 16 March 2026, only holders of «H-2A», «H-2B» and «E-2» non-immigrant visas are eligible for a non - resident [CDL](#). To verify lawful immigration status, states must send queries to the [SAVE](#) system (*Systematic Alien*

⁵⁸ [Unlawful Brokerage Activities Report to Congress Final July 2024.docx](#)

⁵⁹ [Move into Motus | FMCSA](#)

Verification for Entitlements), administered by USCIS (*U.S. Citizenship and Immigration Services*). The validity of a CDL for such persons is limited to one year. States that do not comply with these requirements must fully suspend issuance of licenses⁶⁰.

Against the backdrop of the institutional and legal changes outlined above, the U.S. Congress is considering a number of legislative proposals that could directly affect the road freight transportation sector. Some of these initiatives are aimed at strengthening measures against fraud, while others seek to revise requirements applicable to foreign dispatching services, electronic monitoring tools, and participants in the logistics supply chain. The key provisions of these legislative proposals are examined below.

Bill **H.R. 8267/S. 3950** known as *SAFER (Securing American Freight, Enforcement, and Reliability in Transport Act*⁶¹), is under consideration to add a new provision to **Chapter 49 §13910**, stating verbatim: «*A person acting as a foreign dispatch service must register as a broker*».

The bill's precise legal definition of a «foreign dispatch service» (*an amendment to §13102*) covers a person that:

- a) is not located within the **US, Mexico or Canada**;
- b) has its principal place of business or substantial operations in a foreign country;
- c) acts as a direct licensed agent on behalf of one or more motor carriers under a formal written agreement;
- d) receives compensation from these motor carriers on the basis of a pre-established written legal contract;
- e) provides exclusively administrative or auxiliary services limited to coordinating the movement of cargo without assuming liability for the cargo, and communicates through a broker to arrange transport on behalf of the motor carrier; and
- f) does not engage in soliciting or attracting shippers.

Mexico and Canada are explicitly excluded from the definition of «foreign», which means this provision targets specifically entities outside **North America**. In effect, the bill's only additional variable – geographic location – is what would deprive such an entity of this protection.

⁶⁰ [Non-Domiciled CDL 2026 Final Rule FAQs | FMCSA](#)

⁶¹ [Text - H.R.8267 - 119th Congress \(2025-2026\): SAFER Transport Act | Congress.gov | Library of Congress](#)

Separately, the bill provides for the creation of a Freight Fraud and Theft Advisory Committee (*Freight Fraud and Theft Advisory Committee*) and requires a memorandum of understanding between the Secretary of Transportation and the Attorney General to formalize the procedure for sharing freight-fraud information between DOT and DOJ – a direct legislative response to the coordination gap that FMCSA itself identified in its 2024 report. The bill would also give a legislative basis to the transition from MC numbers to USDOT numbers, instead of relying solely on FMCSA's administrative rollout of the Motus system.

The *Dalilah's Law* (H.R.5688) bill proposes a significant tightening of requirements applicable to foreign dispatching services and commercial drivers operating in the motor freight logistics sector. Under the bill, it is proposed that commercial driver's license (CDL) examinations be conducted exclusively in English, that enhanced oversight measures be introduced for drivers with insufficient English proficiency, and that motor carriers be prohibited from using dispatching services located outside North America. This initiative represents one of the most restrictive legislative proposals aimed at directly limiting the involvement of foreign BPO companies in the U.S. trucking logistics supply chain.

The *CORCA* (*Combating Organized Retail Crime Act*) of 2025 broadens the range of acts qualifying as federal crimes in the interstate transport of stolen property, allows criminal cases to be brought based on the aggregate value stolen over a 12-month period, permits these acts to serve as grounds for federal money-laundering cases, and allows criminal forfeiture of property. The bill is now in the Senate together with S.1404, where it remains in the Judiciary Committee since April 2025, despite a decisive House vote.

The *GHOSTRUCK Act* (H.R.9369) proposes prohibiting the remote alteration of or interference with electronic logging device (ELD) data from locations outside North America. The bill is aimed at ensuring the integrity of ELD records and reducing the possibility of external manipulation. In practice, this restriction could directly affect certain day-to-day functions performed by foreign dispatching services, as they work with ELD data during the monitoring of drivers' hours-of-service and rest schedules.

Although the reviewed legislative proposals differ in their specific focus, they share a common regulatory direction. All of them are aimed at strengthening oversight of the motor freight logistics chain, ensuring clearer

identification of logistics participants, reducing the risks of fraud and cargo theft, and introducing additional requirements for foreign service providers. If adopted, these initiatives could significantly affect not only the U.S. domestic market but also the operations of foreign BPO companies providing remote services to participants in the U.S. trucking logistics supply chain.

ATA (*American Trucking Association*) President **Chris Spear** stated in support of this bill that cargo thieves steal \$ **18** million from the trucking industry every day.

The tightening of regulation described above is taking place against a significant decline in the profitability of carrier operations. This trend is independently confirmed by ATRI's **2025** report. According to the report, the average cost of operating a truck in **2024** was \$**2.26** per mile. Excluding fuel costs, marginal operating expenses rose by **3.6** % and reached \$**1.78** per mile. This is the highest figure for the entire period of ATRI observations.

The average operating margin did not exceed **2**% in almost all market segments. The only exception was less-than-truckload (*LTL*). In the full-truckload (*TL*) segment, the average operating margin was minus **2.3**%.

In response to rising costs, some carriers cut administrative and support staff by **6.8**%. This figure is direct quantitative confirmation of mounting cost pressure. Under such conditions, outsourcing individual functions becomes an economically justified decision.

A similar trend is confirmed by *Armstrong & Associates* data for **2025**. According to it, the market for outsourced logistics services (*3PL*), in the US in **2025** reached \$ **323.4 billion**. Compared with the previous year, the market grew **5.0**%.

Thus, demand for BPO services continues to grow despite the declining profitability of carrier operations. This indicates that the use of external service providers is becoming not an additional tool for improving efficiency, but one of the sustainable ways to reduce costs.

6. Criminal schemes and fraud in the US road freight industry.

After the pandemic boom, the US road freight market entered a prolonged downturn, and it was precisely its economics – excess capacity and rates below the cost of legal operation – that created fertile ground for a surge in fraud and

cargo theft⁶². As small carriers left *en masse*, minimally trained drivers flooded in, and with the regulator's limited powers, crime shifted from «street» theft to strategic theft – through deception, identity substitution and cyberattack.

It is not so much the number of incidents that is growing as their «cost». According to Verisk CargoNet, with the number of events almost unchanged in 2025, estimated losses reached nearly \$ 725 million – 60 % more than a year earlier⁶³. Below are the industry's main problems, the typology of schemes, the most vulnerable links in the chain, and key figures.

The current downturn began in April 2022 and became one of the longest in the industry's history. During the pandemic, the number of «for-hire» carriers grew from about 241 thousand in June 2020 to more than 475 thousand by July 2023 – growth of almost 96 %, flooding the market with capacity⁶⁴. When transport demand fell, spot-market rates dropped below carriers' cost levels. According to ATRI, the average cost of a trip in 2024 reached \$ 2.26 per mile, while spot rates were around \$ 1.80–1.90⁶⁵ per mile. Thousands of small carriers and single operators, working at or below cost, left the market, and the revocation of operating authority sharply accelerated⁶⁶.

Against this backdrop, a persistent set of problems emerged, hitting brokers, carriers, owner-operators and shippers differently:

A) Excess capacity and dumping. Below-cost rates squeeze out honest carriers and push part of the market toward risky practices⁶⁷.

B) A surge in fraud and cargo theft. Economic pressure coincided with organized groups shifting to high-yield deception schemes⁶⁸.

C) Non-resident licenses (*non-domiciled CDL*) and «CDL mills». After a series of fatal accidents – including a high-profile crash in Florida in August 2025 involving a driver with a non-domiciled CDL and poor English – FMCSA launched a campaign against «CDL mills», removing more than 7 thousand schools from the training registry⁶⁹⁷⁰; a new rule sharply restricted the issuance of such licenses⁷¹.

⁶² otr.solutions.com

⁶³ verisk.com

⁶⁴ otr.solutions.com

⁶⁵ otr.solutions.com

⁶⁶ tanktransport.com

⁶⁷ tanktransport.com

⁶⁸ verisk.com

⁶⁹ truckinginfo.com

⁷⁰ overdriveonline.com

⁷¹ truckdispatchexperts.com

D) Payment risk and non-payment. «Bad brokers», through non-payment and double-brokering, drained more than \$ **10 billion** from the industry over **2022–2025** by industry estimates; over the same period **FMCSA** revoked **15,419** broker authorities⁷².

E) Counterparty-vetting burden. Registries are outdated and vulnerable to forgery, so verification falls on the companies themselves. **FMCSA** advises treating **MC/USDOT** data like banking data and re-checking even insurance certificates⁷³.

F) Vulnerability to cyberattacks. Business-email compromise, fake emails, phone-number spoofing and the creation of fictitious identities allow fraudsters to impersonate genuine transport participants and reroute cargo⁷⁴.

G) Transport insurance is becoming more expensive. Although the mandatory insurance-coverage amount has remained at \$ **750 thousand** since **1985**, large court payouts – averaging about \$ **51 million** in the most severe cases – force insurers to raise policy prices and be more cautious in selecting clients⁷⁵.

H) Enforcement gaps. After the **DOT** ruling in the **Riojas** case (**2019**) **FMCSA** is deprived of the right to impose civil fines for unlicensed brokerage administratively and must refer cases to DOJ; the agency asks Congress to restore these powers⁷⁶.

Modern freight fraud is primarily deception, not forcible seizure. **NICB** directly links the rise in theft to digitalization: fictitious pickups, sham carriers and cyber-manipulation of logistics⁷⁷. The key schemes can be ranked as follows:

Double-brokering – the unauthorized transfer of cargo to another carrier without the shipper's knowledge. The most widespread type of crime in the industry. The number of complaints at **Truckstop** grew by **400%** over late **2022** – early **2023**⁷⁸.

The process begins with the fraudster adopting the guise of a «fictitious carrier». To do this, the perpetrators steal the **MC** and **DOT** license numbers of legitimate transport companies that have a long history and a good market

⁷² transportationrecovery.com

⁷³ fmcsa.dot.gov

⁷⁴ nicb.org

⁷⁵ truckdispatchexperts.com

⁷⁶ truckinginfo.com

⁷⁷ nicb.org

⁷⁸ truckstop.com

rating but have currently reduced their activity. When the original cargo owner or first legitimate broker posts a load, the fraudster, using this stolen data, presents themselves as a reliable carrier. The parties digitally sign an agreement (*Broker-Carrier Agreement*), and the fraudster receives a rate confirmation (*Rate Confirmation*). At this point the cargo is officially assigned to the fraudster, and the original customer believes their goods are in reliable hands.

Having secured the cargo, the fraudster must find a real driver to deliver it. However, reselling the cargo through the carrier profile may raise suspicion in the system. So at this stage the fraudster steals the data of another company – a reputable, solvent and legitimate broker. Creating fake emails and clone sites, the fraudster, posing as this trusted broker, posts the load on logistics platforms (*Load Boards, such as DAT or Truckstop*) at a lower rate. The real driver, seeing the load, contacts the fraudster in full confidence that they are working with a reputable broker. A completely new, second agreement (*Broker-Carrier Agreement*), is signed between them, and the driver is given a fake Rate Confirmation with a reduced price. To hide the original customer's data, the fraudster tells the driver this is a «blind shipment» (*Blind Shipment*), and instructs them to introduce themselves at the warehouse with the name of the fictitious carrier from the first stage.

When the real driver arrives at the warehouse and gives the specified name, warehouse staff see a match with the system record, release the cargo, and the driver signs the bill of lading – BOL (*Bill of Lading*). After successful delivery to the destination, the driver receives from the consignee a stamped document confirming delivery – POD (*Proof of Delivery*), and sends it to the fictitious broker (*the fraudster*) to receive payment for their services. The fraudster, in turn, attaches this genuine proof of delivery to their invoice and sends it to the very first, original customer. Seeing that the cargo has been delivered, the customer transfers payment to the fraudster's account. After this the perpetrator cuts off all contact and disappears, and the real driver is left without payment for their work.

The successful operation of this scheme is due to a number of legal and technical gaps in the system. Most importantly, there is no direct link between the original customer and the real driver. Each of them concludes separate, unconnected contracts with the fraudster. FMCSA databases and electronic signatures allow documents to be confirmed in minutes

without visual identity verification, which gives the stolen data the appearance of full legitimacy.

When the affected driver turns to the authorities or to the real broker whose name was used, the case is often qualified not as criminal fraud but as a breach of contractual obligations (*a civil dispute*). Moreover, if the cargo is damaged in transit, the real driver's insurance may not cover the loss, since legally they accepted the cargo from a party that had no legal right to it.

For reference: in the *FTC* case against *California* broker *Apex Freight Services* (2018), the intermediary accepted payment from shippers but did not deliver the cargo and did not pay the carriers. The company settled the charges by paying \$ 500 thousand.⁷⁹

Strategic theft (theft-by-deception) – the cargo is «lawfully» received and taken away using deception on the side of the supplier, broker or carrier⁸⁰.

The process begins with the perpetrators illegally obtaining precise trip details: the names of brokers and drivers, staff contacts, and bill-of-lading numbers. As soon as the legitimate driver picks up the cargo, the fraudsters contact them on behalf of the real broker or customer. Operating with genuine data, they inspire full trust and, under a convincing pretext (*for example, an urgent change in the client's plans or an overcrowded warehouse*) instruct them to change the route.

The driver, accustomed to frequent changes in logistics, usually does not re-check the information through official channels and arrives at a bogus warehouse rented by the criminals for a short term. After the goods are voluntarily unloaded, the fraudsters quickly transfer them to their own vehicles and disappear. The deception is revealed only when the real recipient begins searching for the missing cargo. The success of this scheme is due to the fact that historically all security control is concentrated at the document-verification stage when concluding the contract. Once the cargo is already in transit, control weakens, and the professional use of real names and terminology easily lulls the vigilance of drivers and dispatchers⁸¹.

⁷⁹ grantthornton.com

⁸⁰ nicb.org

⁸¹ verisk.com

For reference: in a case brought by the *Manhattan District Attorney* in June 2026, eight defendants, using stolen shipment data, rerouted «lawfully» transferred cargo and removed goods worth about \$4.49 million⁸².

Identity theft of the carrier and broker and impersonating them – using others' MC/USDOT, forged DOT records, and look-alike domains⁸³. The process begins with «hijacking» the real MC and USDOT license numbers of active market participants. To bypass security checks, the perpetrators forge registration documents (*DOT records*) and create clone sites with look-alike domains and fake email addresses that are visually almost indistinguishable from the original company's official contacts.

Using this fake but legitimate-looking digital storefront, the criminals contact customers under someone else's name and freely book and then pick up cargo onto bogus trucks. Because automated checks against logistics databases show the real company's impeccable history and good ratings, the security system does not detect the trick. As a result of the deception, both the shipper who lost their goods and the legitimate carrier or broker whose details were stolen become double victims – it is in the latter's name that financial claims for the missing cargo subsequently fall along with reputational damage.

For reference: on 3 June 2026, *Manhattan DA Alvin Bragg* indicted eight people (case *IND-71638-26*): impersonating real carriers – *Viking Transport, Z Mile Inc, Altex Logistics, Preston Deliveries, Masters Trucking* – they stole from warehouses in *New Jersey, Pennsylvania and Virginia* consignments of lamb, cheese, beef, copper and cigarettes worth about \$4.49 million; *CargoNet* took part in the investigation⁸⁴⁸⁵.

Fictitious pickup – coordinating a fake carrier's arrival at a warehouse under someone else's name⁸⁶. A fake carrier arrives at the warehouse under a legitimate company's name and takes the cargo away (*unlike direct theft from a parking lot or trailer*). To remain unnoticed longer, the criminals forge documents and re-issue the accompanying paperwork.

For reference: In the same *Manhattan* scheme, the defendants rented tractors, put a real carrier's name and registration number on them, and picked

⁸² freightwaves.com

⁸³ fmcsa.dot.gov

⁸⁴ manhattanda.org

⁸⁵ freightwaves.com

⁸⁶ nicb.org

up cargo: thus on **3 February 2026**, from a warehouse in **Newark (New Jersey)**, posing as **Viking Transport**, they removed **43,100** pounds of copper rod⁸⁷⁸⁸.

«**Phantom**» carriers and «**chameleon**» carriers – new legal entities masking prior violations. Complex schemes are often built through buying up carriers with a «good history»⁸⁹. A carrier with a bad violation history closes down and immediately reopens under a new name and a new DOT number, «**zeroing out**» the past (so-called «**reincarnation**»). Such carriers are about three times more likely to be involved in serious and fatal accidents, and complex thefts are often built through buying legal entities with a «clean» transport history.

***For reference:** after a fatal accident with four dead on **3 February 2026** on Indiana state highway **SR-67** in **Jay County**⁹⁰ **FMCSA** linked the crash to a whole network of «chameleons» and shut down **AJ Partners** along with affiliated **KG Line Group**, **Tutash Express**, **RPM Hauling** and **Valcins Trucking**. The driver was a non-resident (**Bekzhan Beishekeev**, a citizen of **Kyrgyzstan** illegally present in the **US**; the **CDL** had been wrongfully issued to him by the state of **Pennsylvania**), and he was trained by a fictitious driving school⁹¹.*

Business-email compromise and account takeover – last-minute substitution of payment details and delivery address⁹². The perpetrators hack or spoof the mailboxes of brokers and carriers and at the last moment change payment details or the delivery address. Taking over a real account allows correspondence to be conducted from a trusted mailbox, so «sender-address» checks do not work.

***For reference:** in the Manhattan case, a broker believed a phishing email that they took for a message from a frequently used carrier; after this a hacker group obtained the rate data, and a consignment of cheese was rerouted⁹³. A similar forged letter from a «financial director» also started the attack on Arup⁹⁴.*

Credential compromise on load boards – posting fake orders and taking real ones under someone else's name⁹⁵. Having seized the account of a real broker or carrier, the perpetrators act in two main directions. First, they post

⁸⁷ manhattanda.org

⁸⁸ freightwaves.com

⁸⁹ overdriveonline.com

⁹⁰ overdriveonline.com; truckdrivers.life

⁹¹ truckdrivers.life

⁹² nicb.org

⁹³ freightwaves.com

⁹⁴ cnn.com

⁹⁵ fmcsa.dot.gov

fake orders in the name of the hacked company, whose main goal is to extract from responding legitimate carriers their confidential details or advance payments. Second, the fraudsters use the stolen profile to intercept and book real, high-paying loads for the purpose of subsequently stealing them.

In addition to direct theft of cargo and money, hacked accounts on load boards serve criminals as a convenient platform for reconnaissance. Analyzing the platforms' closed data, the perpetrators track others' logistics chains and deliberately look for the most expensive shipments to organize future planned crimes.

***For reference:** the Manhattan group used shipment data stolen by a hacker «syndicate team» to find and intercept cargo⁹⁶; CargoNet separately notes that the perpetrators analyze publicly available board data, choosing high-value targets⁹⁷.*

Forged documents – BOL, POD, and rate confirmations⁹⁸. Criminals fabricate these documents to achieve three main goals: confirming a non-existent loading to illegally obtain a fuel advance, masking theft of part of the goods in transit, or successfully impersonating a legitimate broker using fake credentials.

In practice the scheme is often used to extract money before the trip begins. The perpetrators provide the customer with a fake BOL, which serves as «proof» that the cargo has supposedly already been loaded, and obtain a fuel advance.

A separate, more complex variety is the «false claims» scheme. In this case, at the loading stage the driver is not allowed to inspect the sealed trailer, forcing them to «blindly» sign documents for the declared number of packages. As a result, the shortage originally planned by the perpetrators is discovered only at unloading, and all legal and financial liability for the missing goods falls on the deceived carrier who signed.

Social engineering and new AI deepfakes / voice imitation – context-precise approaches imitating brokers and dispatchers⁹⁹. Calls, emails, and video calls imitate familiar brokers and dispatchers. Voice cloning and real-time video

⁹⁶ freightwaves.com

⁹⁷ verisk.com

⁹⁸ fmcsa.dot.gov

⁹⁹ nicb.org

deepfakes devalue the «I recognized his voice/face» check, while the technology itself is becoming cheaper and more accessible.

***For reference:** in [January 2024](#) an employee of [Arup's Hong Kong](#) office joined a video call with a «financial director» and «colleagues» who turned out to be deepfakes, and made [15](#) transfers totaling about \$ [25.6 million](#), which were never recovered¹⁰⁰. [NICB](#) warns that similar techniques are also moving into freight dispatch¹⁰¹.*

Anti-fraud tools have historically focused on the shipment-tender stage (*shipment tender*), so attackers increasingly shift «downstream». [Verisk CargoNet](#) directly warns: «[theft-by-deception](#)» groups will more actively reroute cargo handed to legitimate carriers, bypassing the controls built around the tender¹⁰². The most vulnerable links are the following:

A) Load boards, as well as carrier registration and verification, are one of the main entry points for fraudsters. Verification via the [SAFER](#) system is mandatory but insufficient, since fraudsters create fake sites that may appear among the top search results¹⁰³.

B) Email and dispatch-system accounts can be stolen using fake emails and other deception methods, which allows fraudsters to intercept correspondence and reroute payments¹⁰⁴.

C) The broker's duty to handle client funds in good faith – the client's money passes through the intermediary and becomes a target¹⁰⁵.

D) Registration of new participants. Use of fictitious addresses: [FMCSA](#) notes that the activity of illegal freight intermediaries is often associated with the absence of a real office or other actual place of business¹⁰⁶.

E) The delivery-confirmation and payment stage ([POD](#)/payment) – the final point for withdrawing funds¹⁰⁷.

F) Granting foreign dispatchers access to the company's internal information systems increases the risk of data leaks and abuse by employees¹⁰⁸.

¹⁰⁰ [cnn.com](#)

¹⁰¹ [nicb.org](#)

¹⁰² [verisk.com](#)

¹⁰³ [fmcsa.dot.gov](#)

¹⁰⁴ [nicb.org](#)

¹⁰⁵ [transportationrecovery.com](#)

¹⁰⁶ [truckinginfo.com](#)

¹⁰⁷ [fmcsa.dot.gov](#)

¹⁰⁸ [nicb.org](#)

The figures should be read with a caveat about source and period. According to Verisk CargoNet's annual analysis, 3,625 incidents were recorded in the US and Canada in 2024 – 27% more than in 2023, with an average theft value of \$ 202,364¹⁰⁹.

In 2025 the total number of events remained almost the same (3,594 vs 3,607), but confirmed cargo thefts rose by 18% (from 2,243 to 2,646), estimated losses reached nearly \$ 725 million (+60 %), and the average value of a single theft rose by 36% – to \$ 273,990¹¹⁰. In other words, criminals began to act less often but more «expensively», shifting toward high-value cargo.

The National Insurance Crime Bureau (citing CargoNet) reports a 27% rise in losses in 2024 and forecasts a further increase of about 22% for 2025. Expert estimates of the real damage exceed \$ 1 billion per year, since some thefts are not reported¹¹¹¹¹². The share of strategic theft grew from about 8% of all cargo thefts in 2020 to about a third by the end of 2024¹¹³.



7. International experience in countering fraud in US logistics.

India, the world's largest exporter of BPO services, ensures trust in BPO through a combination of state regulation and industry self-regulation. The basis of the modern personal-data protection system is the **Digital Personal Data Protection Act 2023 (DPDP Act)** and the **Digital Personal Data Protection Rules 2025 (DPDP Rules 2025)**, adopted on 13 November 2025,

¹⁰⁹ [verisk.com](https://www.verisk.com)

¹¹⁰ [verisk.com](https://www.verisk.com)

¹¹¹ [nicb.org](https://www.nicb.org)

¹¹² [supplychainbrain.com](https://www.supplychainbrain.com)

¹¹³ [supplychainbrain.com](https://www.supplychainbrain.com)

which establish requirements for processing personal data, including additional obligations for «Significant Data Fiduciaries» (*SDF*), such as appointing a data-protection officer (*Data Protection Officer, DPO*), conducting an independent audit and a data-protection impact assessment, and also providing for administrative fines of up to about \$ **30 million**.

Industry self-regulation also plays an important role. The **NASSCOM** association established the **Data Security Council of India (DSCI)**, which developed the framework documents **Data Security Framework (DSF)** and **Data Privacy Framework (DPF)**, widely used by BPO service providers. At the same time, the foundational acts that laid the basis for regulating information security and data protection in India remain the **Information Technology Act 2000** and the **SPDI Rules 2011**.

The basis of the Philippines' success as one of the world's leading BPO outsourcing hubs has been its focus on complying with international information-security and data-protection standards. About **70–75%** of the industry's export revenue is generated by customers from the **US**, including transport-and-logistics-sector companies, which has driven high requirements for the reliability of digital infrastructure and the protection of corporate information.

The trust model is built on three complementary elements. First, to work with large foreign customers, BPO service providers, as a rule, undergo certification to international standards, primarily **ISO/IEC 27001** and **SOC 2**. Their implementation involves the use of **multi-factor authentication (MFA)**, data encryption, access-rights segregation, and continuous information-security monitoring.

Second, a significant part of export BPO companies operate in special economic zones managed by the **Philippine Economic Zone Authority (PEZA)**. At the same time, comprehensive legislation on personal-data protection and countering cybercrime is in force, providing for substantial administrative and financial liability for violations of information-security requirements and unlawful data processing.

Third, the combination of international certification, state regulation, and tax incentives has made it possible to build a high level of trust among foreign customers. This facilitates the conclusion of long-term contracts and supports steady growth in the export of **Philippine BPO** services.

Kazakhstan is Uzbekistan's closest regional competitor in attracting orders for digital-services export, including from American companies. One element of building trust is the development of specialized digital products. The Kazakh startup **Call2action.ai**, a resident of **Astana Hub**, raised venture funding to develop an AI platform for vetting, selecting, and hiring drivers, mechanics and dispatchers for the US trucking industry.

An additional factor of investment appeal is the «**Astana**» **International Financial Centre (AIFC)**, which operates on the principles of English common law, as well as national legislation on personal-data protection, which sets requirements for their processing and cross-border transfer.

8. Mechanisms for protection and winning trust

«**Verify-then-trust**» – is the gold standard of compliance and security in modern logistics, especially in the **US** market.

SAFER – the classic **FMCSA** database. Here you can check historical metrics and safety.

MOTUS: A platform launched by **FMCSA** in **2026** that replaced the old systems. It has introduced biometric verification and strict vetting of legal entities.

Phishing-resistant authentication (FIDO2** / **Passkeys**)** – a type of protection that uses unique cryptographic keys tied to a specific physical device. These can be hardware tokens (*for example, YubiKey*) or built-in biometrics (*Windows Hello, Touch ID, Face ID*). **FIDO2** makes remote email phishing practically impossible, since the attacker does not possess the employee's physical device.

How the authentication works: access is tied to the user's physical device, which acts as a hardware key. Biometric data (*fingerprint, face scan*) or a PIN is not transmitted to the server and not stored on it; it serves solely to locally confirm the owner's identity to the device itself

SSO (Single Sign-On**)** – a technology that lets a user log in once through a central provider (for example, **Microsoft Entra ID** or **Okta**) and get secure access to all work applications without re-entering passwords.

RMIS (Registry Monitoring Insurance Services**)** – one of the leading automated platforms in the **US** logistics industry for onboarding (registering)

freight carriers and continuously monitoring their compliance. In 2021 the service was acquired by [Truckstop](#), one of the largest freight exchanges.

RMM «whitelist» (*Remote Monitoring and Management*) – programs through which sysadmins manage computers remotely. A «whitelist» means that only your official sysadmins can connect to the computer. Any third-party remote-access programs (*for example, if a fraudster asks an employee to download [AnyDesk](#) or [TeamViewer](#)*) will be blocked. The employee will physically be unable to install any third-party program on the computer.

EDR (*Endpoint Detection and Response*) – a new-generation «smart antivirus». It monitors behavior. If an employee who usually opens one document per hour suddenly starts downloading the entire client database, [EDR](#) will consider this suspicious, block the action, and send an alert to management.

SPF (*Sender Policy Framework*) «Guest list» – a public list of all servers and IP addresses that you officially allow to send emails on behalf of your domain (*for example, [@yourcompany.com](#)*). When the recipient server (*for example, Gmail or your client's mail*) receives an email from you, it checks your domain's [DNS](#) records. If the sender's IP address is in your «guest list» ([SPF records](#)) the email is let through. If a fraudster tries to send an email from another server while spoofing your domain, the check will fail.

DKIM (*DomainKeys Identified Mail*)

[DKIM](#) adds an invisible cryptographic digital signature to every outgoing email. This proves that the email was sent by you and that its content (*including attachments*) was not altered along the way. The system uses two keys. The «private key» is stored on your mail server and puts a «stamp» on every email. The «public key» you publish in the domain's [DNS](#) records. The recipient server takes your public key, checks the stamp on the email and confirms its authenticity.

DMARC (*Domain-based Message Authentication*)

[SPF](#) and [DKIM](#) on their own do not tell the recipient server what to do if an email *fails* the check. [DMARC](#) combines them and gives a clear instruction: allow, send to spam, or block forgeries. In addition, [DMARC](#) sends you reports on who is trying to send emails in your name.

Monitoring of look-alike domains

Fraudsters, knowing that your domain is protected by **DMARC**, may register a similar domain (*for example, [c0mpany.com](#) instead of [company.com](#), or [company-logistics.com](#)*). It is necessary to use automated Threat Intelligence services (*or the built-in functions of [Microsoft Defender](#)*) that scan the global registry of new domains. As soon as someone registers a domain visually similar to yours, the system issues a warning, and you can preemptively block it at your security gateways or file a complaint with the registrar.

Inbox-rules audit (*Inbox Rules Audit*)

If a hacker does gain access to an employee's mail, their first action is to create hidden email-processing rules. The hacker sets up a rule: «*Automatically forward all incoming emails containing the words Invoice, Bank, Rate, Payment to an external address [[hacker@gmail.com](#)], and delete the original to the trash*». This way the hacker reads the correspondence, while your employee does not even see the incoming emails from clients.

The administrator must regularly (*or automatically via [scripts/SIEM](#)*) export and check the forwarding rules of all users. In an ideal corporate environment, automatic forwarding to external addresses (*[External Auto-Forwarding](#)*) should be prohibited at the global level of the mail server.

Configuring [SPF/DKIM/DMARC](#), monitoring look-alike domains, and inbox-rules audit:

Configuring authentication protocols (*[SPF](#), [DKIM](#), [DMARC](#)*) provides a «digital signature» for outgoing correspondence. This prevents spoofing of the sender's address (*[spoofing](#)*): clients' mail systems will automatically recognize and block emails from attackers trying to send fake invoices in the company's name.

Implementing an automated phishing-domain tracking system. This will allow prompt detection and blocking of addresses visually similar to the corporate one (*for example, with letters replaced by digits*), from which fraudsters may contact counterparties.

A regular audit of employees' inbox rules is necessary to prevent corporate espionage. In case of hidden account compromise, attackers often set up invisible rules to auto-forward emails containing keywords (*for example, «invoice», «contract»*). A regular check will make it possible to detect and remove such settings in time.

ISO/IEC 27001 certification – is the highest international standard in the field of information-security management. If **FIDO2**, **SSO**, and **RMIS** are specific technical tools, then **ISO 27001** is the fundamental architecture and corporate culture that governs these tools.

9. Current problems related to IT Park residents

Recently, **IT Park residents** have been submitting appeals about international-level fraud (*cybercrimes, freight-transport fraud, cargo theft*) involving some citizens of **Uzbekistan** working in the **US** logistics market.

Negative articles about participants in **Uzbekistan's** **BPO-logistics** services export frequently appear on a number of US logistics forums (*Trucking Truth, Truckers, FreightBrokers, etc.*), as well as negative comments on social networks (*Overdrive, FreightWaves, etc.*).

Over **2025–2026**, **IT Park** received reports of a total of **20** cases of fraud in the sphere of **US BPO-logistics** export.

***For reference:** In November **2023**, the American company «X», whose founder is a citizen of Uzbekistan, failed to pay an IT Park resident \$ **360** thousand. In May **2026**, the dispatcher of «Y», which served the company «Z», and a truck driver in the US caused damage worth \$ **75** thousand. As a result of hacker attacks on «XYZ» LLC, carried out in April **2026**, cargo worth \$**1** million was stolen.*

Double-brokering schemes are widely observed among migrants from **CIS** countries in the **US**, as are cases of buying fake accounts on freight exchanges (*Load Boards*) and using others' licenses.

In addition, violations and crimes are becoming more frequent by compatriots in the **US** involved in the logistics chain. Numerous reports appear in the media about drivers with illegal residence status in the **US**, of **CDLs** wrongfully issued **CDL** to such drivers, and about the uncovering of criminal schemes for stealing goods.

***For reference:** In early June **2026**, the *Federal Bureau of Investigation (FBI)* and the *New York* police uncovered a major criminal scheme involving citizens of **Uzbekistan**. The criminals stole high-value products worth \$ **4.5 million**. In *July* of this year, a driver from **Uzbekistan** was charged with attempting to destroy evidence in a fatal accident in the state of *Ohio*.*

The above circumstances have a negative impact on IT Park residents working in the US in the BPO-logistics sphere in compliance with the law.

For reference: in March 2024 the DAT platform introduced restrictions on incoming IP addresses from Serbia. It is also expected that similar blocking and the introduction of additional verification will be applied to individual countries on trading platforms.

10. Risks for Uzbekistan

Given the current trends in changes to the legal framework of the US road freight industry, as well as the growing number of crimes in this industry, including with the direct or indirect participation of Uzbek companies in the form of IT Park residents and compatriots, certain economic and reputational risks for Uzbekistan are emerging. Among them:

- it becoming mandatory for BPO-companies to register as a broker, thereby obliging the company to post a surety bond of \$ 75 thousand, to fall under the direct jurisdiction of FMCSA and DOJ, and to cease the current model based on dispatch contracts;
- the blocking of Uzbek IP-addresses on US freight exchange platforms;
- the introduction of restrictions or additional verification requirements for Uzbek companies by major US logistics platforms such as Highway, DAT, Truckstop;
- a possible loss of trust in national IT companies and BPO services, as well as damage to Uzbekistan's reputation in the international digital-services market.
- personal criminal and reputational liability of Uzbek citizens participating in fraud schemes remotely.

11. Recommendations

Given the above, to reduce or fully prevent the risks and strengthen the export of **BPO services**, it is recommended to carry out work in the following areas:

- implement «verify-then-trust» procedures in the form of mandatory cross-checking of counterparties' details against the **SAFER** and **MOTUS** systems;
- switch to phishing-resistant authentication (*FIDO2/passkeys*) for email, exchanges, and **RMIS**; introduce **SSO**, personal accounts, and minimal privileges;
- establish a closed working environment: **RMM** «whitelist», blocking of unknown installers, **EDR**, encryption, prohibition of personal devices;
- work strictly as a bona fide agent of the carrier under a written contract; not deal with brokers'/factoring money and not «re-broker» cargo;
- configure **SPF/DKIM/DMARC**, monitoring of look-alike domains and inbox-rules audit;
- obtain **ISO/IEC 27001** certification (*and SOC 2 where required*); conclude data-processing agreements with customers (*DPA*); consider cyber-insurance.